

UNITED STATES BANKRUPTCY COURTSOUTHERN DISTRICT OF CALIFORNIA
325 West F Street, San Diego, California 92101-6991

In Re

BANKRUPTCY NO.

§ 341(a) Mtg. Date:

§ 341(a) Mtg. Time:

Debtor(s)

OBJECTION TO CONFIRMATION OF CHAPTER 13 PLAN

TO THE DEBTOR, THE DEBTOR'S ATTORNEY AND THE CHAPTER 13 TRUSTEE:

☐

Michael Koch, Chapter 13 Trustee,

☐

(Insert Name and Complete Mailing Address of Objecting Party)

a creditor in this case,

hereby objects to the Confirmation of the Chapter 13 Plan. The basis for the objection is stated below.

(Note to Objecting Party: Your Statement of Objection must be as specific as possible. Check only those sections which are applicable to your objection and provide an explanation of your objection where requested):

1. ☐ The Plan discriminates unfairly against the class(es) of unsecured claims because

. [§1322(b)(1)]

2. ☐ The Plan modifies the rights of a creditor whose claim is secured only by a security interest in real property that is the debtor's principal residence by providing that

. [§1322(b)(2)]

3. ☐ The Plan fails to provide for the curing of a default and maintenance payments on a secured or unsecured claim on which final payment is due after the proposed final payment under the Plan. [§1322(b)(5)]

4. ☐ The Chapter 13 Plan is not proposed in good faith because

. [§1325(a)(3)]

This Objection to Chapter 13 Plan must be accompanied by a Notice of Hearing pursuant to LBR 3015-5

5. ☐ The debtor is distributing less to the allowed unsecured creditors than they would receive under a Chapter 7 liquidation. [§1325(a)(4)]
6. ☐ Objecting creditor has an allowed secured claim and objects because
- ☐ I have not accepted the Plan. [§1325(a)(5)(A)], OR
- ☐ the Plan fails to provide for a retention of lien securing my claim and the value of the property to be distributed to me is less than the allowed amount of my claim. [§1325(a)(5)(B)]
- Amount of Claim \$ _____
- Value of Property \$ _____, OR
- ☐ the debtor has failed to surrender to me the property securing my claim. [§1325(a)(5)(C)]
7. ☐ The debtor has no ability to make the payments proposed by the Plan because _____ . [§1325(a)(6)]
8. ☐ The debtor has failed to apply all projected disposable income to Plan payments for a period of not less than three years. [§1325(b)(1)(B)]
9. ☐ The debtor has failed to begin making payments prescribed in the Plan within thirty (30) days of the filing of the Plan. [§1326(a)(1)]
10. ☐ Other [cite applicable Code section or case authority]:

I hereby certify under penalty of perjury that I have this date mailed a true copy of this Objection to Plan to the attorney for the debtor (or the debtor) and to the assigned Chapter 13 trustee as indicated below at the following addresses:

Attorney for Debtor (or Debtor):

☐ Chapter 13 Trustee :
MICHAEL KOCH, TRUSTEE
402 West Broadway, Suite 1450
San Diego, CA 92101
mkoch@ch13.sdcoxmail.com

DATED:

(Signature of (Attorney for) Moving Party)

(Please Type or Print Name)

(Address)

(City, State, ZIP)

(Daytime Phone Number)